

**Multiplier:** Plaintiff asks for a 1.5 multiplier in this matter. When determining whether to apply a multiplier, the court should consider “the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights . . . into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) The court is not required to grant a request for an enhancement simply because an attorney takes a matter on a contingency basis, but it can do so in appropriate cases. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. (*Id.* at 1139.)

This case is not novel or complex. The complaint does not include any novel or new theories of liability. Plaintiff did not sustain any injuries. Plaintiff is an LLC formed for the purpose of bringing lawsuits under the ICA. (Complaint, ¶ 1.) It was established to profit from this statute. As such, it is unclear to the extent it is actually serving a public interest. Due to this, a multiplier does not appear warranted and will not be awarded in this matter.

**Costs:** Plaintiff seeks \$60 in costs in this motion. A memorandum of costs is the appropriate way to seek costs, which Plaintiff has done. Plaintiff has filed a memorandum of costs that has not been challenged. If a memorandum of costs is not challenged within 15 days of service of the memorandum of costs, the court clerk must immediately enter the costs on the judgment. (California Rules of Court, rule 3.1700(b)(4).) Since the memorandum of costs was not challenged, costs automatically became part of the judgment and there is no need to rule on this request.

**Summary of Recommendation:** Grant the motion and award \$6640 in attorneys’ fees.

**2.**

| CASE #      | CASE NAME                  | HEARING NAME                         |
|-------------|----------------------------|--------------------------------------|
| CVRI2502928 | TNRD MANAGEMENT, LLC vs LE | MOTION FOR JUDGMENT ON THE PLEADINGS |

**Tentative Ruling:**

Continued to 10/1/2026